

**JUSTIFICATION AND APPROVAL FOR OTHER THAN FULL AND OPEN
COMPETITION
41 U.S.C. 3304(a)(1))**

J&A No.: FY25-084

Pursuant to the requirements of the Competition in Contracting Act (CICA) as implemented by the Federal Acquisition Regulation (FAR) Subpart 6.3 and in accordance with the requirements of FAR 6.303-1, the justification for the use of the statutory authority under FAR Subpart 6.3 is justified by the following facts and rationale required under FAR 6.303-2 as follows:

1. **Agency and Contracting Activity.** The Department of Homeland Security (DHS), Office of Procurement Operations (OPO), Federal Protective Service (FPS), Acquisition Division (AD) proposes to extend the performance period of Contract 70RFP118DE2000001, with Paragon Systems, Inc., for Armed Protective Security Officer (PSO) services at various sites throughout the New York Metropolitan area on the basis of other than full and open competition.
2. **Nature and/or Description of the Action being Approved.**

(a) Nature of action: FPS intends to procure protective security officer services on a noncompetitive basis for up to six (6) months, April 01, 2025 – September 30, 2025, to allow time to finalize award of the competitive follow-on task order and provide adequate time for transition. This action will result in a modification to extend the ordering period of the current contract to allow placement of a task order to continue critical PSO services throughout the New York Metro area. The task order will only be issued under this contract for the necessary length of time required, but not to exceed six (6) months. The current contract is set to expire on March 31, 2025. The follow-on procurement is currently in the pre-award phase with the team finalizing documents to make an award on or before April 10, 2025. FPS AD utilized unrestricted/full and open Multiple Award Contract (MAC) for Protective Security Officer Services, with approval from the Office of Small and Disadvantaged Business Utilization (OSDBU). This contract vehicle was established to compete PSO requirements in a more efficient and streamlined manner utilizing FAR 16.505 procedures. The MAC was specifically designed to enable DHS/FPS to accomplish its security mission objectives without delay. As stated above, the anticipated award date under the MAC is April 1, 2025. This follow-effort will also require a transition period of 120-days from the date of award to the performance start date. The estimated start date of the order to be placed under the MAC is August 1, 2025. As such, this extension will allow time to complete the award and provide an adequate transition period to the new effort for this requirement.

(b) Name and address of the contractor.

Paragon Systems, Inc.
13900 Lincoln Park Drive
Suite 300
Herndon VA 20171-4634

this extension is for up to six (6) months of additional PSO services from April 1, 2025 through September 30, 2025; at an approximate value of [REDACTED]

4. Identification of Statutory Authority Permitting Other Than Full and Open Competition.

The statutory authority permitting other than full and open competition is 41 U.S.C. 3304(a)(1) implemented by FAR 6.302-1, only one responsible source and no other supplies or services will satisfy agency requirements.

5. Identification of Exception to the Buy American Statute

Not applicable.

6. Demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited.

Paragon Systems, Inc. is currently satisfactorily performing PSO services under Contract 70RFP118DE2000001, at various locations throughout the New York Metro area. The contract is set to expire on March 31, 2025. FPS AD anticipates the award of a task order under the Multiple Award Contract on or before April 10, 2025, which was solicited under Request for Quotations (RFQ) 70RFP125QE2000009. However, due to unexpected delays throughout the evaluation process, the government requires additional time to complete the procurement prior to issuing the award of the follow-on task order, which requires a minimum of a 120-day transition period.

During this acquisition time frame there were unexpected delays to include: 1) the contracting division responsible for this RFQ was working on recompeting several armed PSO requirements which included contracts with more imminent expirations. The Acquisitions Division currently has limited resources to process each of these competing efforts and achieve our acquisition milestones due to significant employee attrition in recent years and 2) Procurement lead time was inflated due to the pursuit of thorough additional market research at the request of the Small Business Office representatives to ensure the appropriate acquisition strategy is selected for the follow-on procurement. This contract vehicle was established to compete PSO requirements in a more efficient and streamlined manner utilizing FAR 16.505 procedures. Therefore, the circumstances listed above necessitates an extension of the incumbent contract to allow for the evaluation and award of the follow-on task order and the required transition period.

The follow-on requirement under this contract is estimated to be awarded on or before April 10, 2025, with an anticipated performance start date on or before August 1, 2025. The follow-on task order will have a transition period of 120-days from the date of award to the performance start date. This transition period enables the follow-on contractor to obtain all necessary equipment, licenses, training, and other certifications/ suitability requirements for its employees to be able to begin standing post at the start of performance. Due to extensive screening, training, licensing, and transition requirements for PSOs under the FPS program, another PSO firm cannot immediately replace the existing contractor without a severe and unacceptable degradation in overall security jeopardizing federal government personnel, visitors, and assets. For these reasons, it is also not feasible for any portion of the work to be segregated to allow for competition. The incumbent

contractor, Paragon Systems, Inc., is familiar with the instant requirement, facility locations, and has a fully qualified staff in place and is the only contractor at this time that can immediately fulfill the requirement without delay or interruption of services. As a result, an extension of services under the current contract is necessary to ensure a seamless transition takes place from the existing requirement to the follow-on effort.

Title 40 United States Code (U.S.C) §1315 gives DHS the responsibility to protect federal facilities and the people therein. Presidential Policy Directive 21 (PPD-21), and the National Infrastructure Protection Plan (NIPP) further refine DHS's responsibility to protect buildings, grounds, and property that are owned, occupied, or secured by the Federal Government. These documents also establish U.S. policy for the protection and resilience of the Nation's critical infrastructure and provide a framework for integrating efforts designed to enhance the safety of critical infrastructure. Given the reality of terrorist threats, it is in the best interests of DHS and the public to continue to allow the incumbent contractor to provide services until the follow-on task order is appropriately transitioned. Effective PSO services are integral to the FPS mission to respond to terrorist attacks, domestic workplace violence, trespassing, disorderly conduct, and emergency medical situations. PSO services also mitigate threats by detecting firearms, hazardous materials, and suspicious packages at these locations. Due to these critical roles, a modification to extend the current contract 70RFP118DE2000001 with Paragon Systems, Inc. is required to allow placement of a new task order to provide continued services to ensure uninterrupted service, a seamless transition, and to eliminate potential disruption in PSO services.

7. Description of Efforts Made to Ensure that Offers are Solicited from as Many Potential Sources as is Practicable.

The circumstance restricting competition for this requirement is that "only one responsible source and no other supplies or services will satisfy agency requirements," pursuant to FAR 6.302-1. Therefore, no exception to the FAR 5.2 notification requirement applies, and FPS AD posted this requirement to SAM.gov on March 17, 2025, which is slightly under the 15-day threshold; however, OPO did not approve the ADFO Memorandum until March 16, 2025, pursuant to FAR 5.201(b)(1)(ii). FPS AD intends to make this justification publicly available pursuant to FAR 6.305, via posting it on SAM .

8. Determination by the Contracting Officer that the Anticipated Cost to the Government will be Fair and Reasonable.

The Contracting Officer has determined that the hourly rate of [REDACTED] is fair and reasonable based on comparison of the proposed prices to historical prices paid for the same or similar items in accordance with FAR 15.404-1(b)(2)(ii). Paragon confirmed this rate for the extension period and it was reviewed by FPS AD and determined to be fair and reasonable. Paragon agreed to honor the hourly rate of [REDACTED] which is the rate provided under J&A FY24-00339 expiring on March 31, 2025, for the period of performance from April 1, 2025 through September 30, 2025, which will be modified into the contract under modification P00033. The price analysis table below shows the comparison in hourly priced rates from the current contract as well as different contracts that were competitively awarded for PSO Armed Guard Services for the FPS East Zone to the current negotiated hourly rate which is proposed for the J&A period. All contracts have similar Statements of Work and similar training/ certification requirements as they are all for Armed PSO services.

					-
				\$	\$
				\$	\$

As shown above, the rates for the extension are competitive to the rates for other armed PSO services in the marketplace. As a CBA is in place under this contract, any other contractor would be required to pay PSOs the same wages and fringe benefits as the current contractor is currently paying its PSOs.

In accordance with FAR 15.403-1(b)(3), no certified cost or pricing data will be required because the service is commercially available to the general public.

9. Description of Market Research.

The agency has conducted market research for the new requirement and is familiar with the other potential sources and their qualifications. Based on our market research, other firms could provide PSO services at the New York Metro area locations, however they could not do so by April 1, 2025, causing unacceptable delays or potentially jeopardizing the safety of government employees, government facilities, and its visitors. Accordingly, no other contractor can provide the services without an unacceptable interruption in service at this time.

10. Any Other Facts Supporting the Use of Other Than Full and Open Competition.

Since it is essential that service continue without interruption for the security of the facilities, its tenants, its visitors, and the fact that the current contractor, Paragon Systems, Inc. is performing satisfactorily as documented under the Contractor Performance Evaluation Assessment Report System (CPARS), it is in the best interest of the government to extend contract 70RFP118DE2000001 for up to six (6) months with the current contractor.

11. A Listing of the Sources, if Any That Expressed, in Writing, an Interest in the Acquisition.

Not Applicable.

12. A Statement of the Actions, if Any, the Agency May Take to Remove or Overcome Any Barriers to Competition Before Any Subsequent Acquisition for Supplies or Services Required.

This requirement is for the sole purpose of issuing a modification to continue PSO services under Contract 70RFP118DE2000001 until the competitive follow-on task order is awarded and transitioned to start. FPS AD is currently processing a follow-on requirement which is taking longer

than originally projected due to unanticipated issues. The agency plans to make award on or before April 10, 2025, with the new task order performance to start no later than August 1, 2025. It is essential that services continue without interruption for the security of federal facilities throughout the New York Metro area to include government personnel and visitors at these locations.

